

wished to cancel the oral proceedings. For reasons of internal organisation at the EPO, the opposition division did not receive this letter until after the date of the oral proceedings. The board of appeal ruled that eight days was a sufficient period of time for the oral proceedings to be cancelled, since no evaluation of new facts or arguments was needed (the case was different in T.10/82, OJ 1983, 407). Since the letter was received too late for purely internal reasons, the opponents were not at fault. They were not obliged to bear a part of the costs of the other party. A change of opinion regarding the necessity of oral proceedings could not be regarded as culpable conduct either (see also T.383/05).

In T.721/96 of 15 September 1998 the respondent informed the board and appellant, **four working days** before the date set for oral proceedings, that it was abandoning the patent and no longer requesting oral proceedings. However, the declaration abandoning the patent was not completely unambiguous. The board refused the appellant's request that costs be awarded against the respondent; it had been clear that the oral proceedings would probably be superfluous and the appellant could have contacted the DG 3 Registry to find out about the course the proceedings would be taking.

In T.556/96 the appellant withdrew his request for oral proceedings **early in the afternoon preceding** the oral proceeding. By that time, the opposing party's representative had already set off. The board ruled that the appellant had withdrawn his request too late. The fact that the other party had also unconditionally requested oral proceedings was irrelevant; it too could have withdrawn the request, had it known in time that the appellant would not be attending. The board therefore ordered the appellant to pay the costs incurred by the respondent in preparing and attending the oral proceedings.

In T.42/99 appellant I announced, as early as **one month prior to oral proceedings**, that experts would attend those proceedings. Only shortly before the appointed date for the proceedings, appellant II submitted a request that statements by an expert be admitted at the oral proceedings. Appellant II also requested the postponement of the oral proceedings so that its expert would have enough time to prepare. The board decided to postpone the appointed date, however, in doing so, the board also regarded it as equitable to order a different apportionment of costs. In its reasons the board took the view that, although a reply from appellant II to the announcement by appellant I that experts would attend the oral proceedings would not have been possible within the time limit set by the board, a "response" to the aforementioned announcement should have followed immediately and not shortly before the appointed date for oral proceedings. At this late stage, it was plausible that the representative of appellant I had made arrangements for the trip to Munich and a hotel reservation, which could not be cancelled without a financial loss.

In T.99/05 the appellant submitted, **13 days before the oral proceedings**, a new experimental report in view of which the respondent asked for postponement of the oral proceedings. The appellant strongly objected to such a postponement. Since, in the board's view, the question of postponing the oral proceedings was linked to the question of whether the late-filed experimental report should be introduced into the proceedings, the board deemed it appropriate to maintain the oral proceedings in order to hear the arguments of the parties concerning the relevance of the late-filed experimental report of the appellant, and hence to decide on the introduction or not of this report into the

proceedings. However, the oral proceedings did not result in a final decision with regard to patentability and second oral proceedings were scheduled in order for the respondent to be allowed sufficient time to file counter-experiments. Whilst the late filing did not represent an abuse of proceedings, it was evident that the final outcome of the proceedings had been delayed. Therefore, the board found it appropriate for reasons of equity to order a different apportionment of costs.

In **T. 490/05, on the day before oral proceedings**, the proprietor had withdrawn both his request for oral proceedings and his request to have the impugned decision set aside. Thus, even before oral proceedings it was clear that the impugned decision revoking the patent was sure to be made final. This gave him the advantage of being able to focus his preparations for the oral proceedings on the proprietor's request for apportionment of costs. Thus there were no reasons of equity for sharing the costs incurred by the opponent.

In **T. 1771/08** the board held that an apportionment of costs under Art. 104(1) EPC could be ruled out from the outset for lack of equity if the representative of the party requesting a different apportionment owing to postponement of the oral proceedings had **unreservedly agreed** to their postponement.

In **T. 258/13** the appellant withdrew its request for oral proceedings **two days before the oral proceedings**, which de facto amounted to only one day in view of the lateness in the day (5 p.m.). This was not notification in good time. Citing **T. 556/96**, the board held that the appellant's request had to be treated as having been received so late that the respondent would already have had to be fully prepared, taking further into account the necessary travelling time during the day before the oral proceedings. An apportionment of costs in favour of the respondent was appropriate. However, for the oral proceedings only the presence of an authorised representative was necessary. The attendance or not of an accompanying person had no bearing on the conduct of the oral proceedings and was a matter of a deliberate choice by a party in which the other party did not need to be involved. Also to charge the appellant costs incurred by the accompanying person would contravene the principle of equity.

In **T. 169/14** the board held that there was an equitable obligation on every party summoned to oral proceedings to inform the EPO and the other party as soon as possible, once it had decided that it would not be attending or was withdrawing its request for them. Consequently, in cases where a party unduly delays its decision not to attend the oral proceedings, or the withdrawal of its request for them, or its communication of this to the board, an apportionment of costs in favour of the other party could be justified if the costs were directly caused by the fact that the notice was not filed in due time. In the case at issue, the appellant withdrew its request for oral proceedings only one week before the scheduled date. However, the appellant at the same time submitted observations in reply to the board's preliminary opinion and requested that they be taken into consideration by the board in reaching its decision. Had the board found the appellant's new submissions admissible and convincing, oral proceedings would have had to take place in view of the respondent's conditional request for them. Additionally, there were no facts on file indicating that the appellant unduly delayed his notice or conducted himself in a clearly improper or irresponsible manner.

2.2.3 Other cases concerning oral proceedings

An apportionment of costs is justified if excessive costs are incurred for the oral proceedings and caused mainly by one party (see T 49/86). The right to oral proceedings is absolute and therefore not subject to any conditions (T 614/89, T 26/92, T 81/92 and T 408/02). If the party that requested oral proceedings fails to produce new arguments during them, that does not constitute abuse of procedure and is not a reason for awarding of costs, as consistently ruled in T 303/86, T 305/86, T 383/87, T 125/89 and T 918/92 (but not in T 167/84, OJ 1987, 369).

In T 1022/93 the oral proceedings, which only the appellant had requested, were **superfluous**. Even in the written appeal procedure the appellant had refrained from communicating why, in its opinion, the amended process claims should be considered inventive and from specifying that the additional example described a process according to the amended set of claims. This made it impossible either to remit the case without oral proceedings or to deal with the substance of the case at the oral proceedings. For reasons of equity, therefore, the appellant was required pursuant to Art. 104(1) EPC 1973 to reimburse to the respondent the costs incurred as a result of the participation at the oral proceedings before the board.

In T 905/91 the respondents had requested a different apportionment of costs on the grounds that **the appellants had not brought prepared auxiliary requests to the oral proceedings**, which had therefore continued into the afternoon. The board rejected the request for the following reasons. Firstly, the appellants had endeavoured to take account of the reservations expressed by the board and had filed new documents. Secondly, oral proceedings served specifically to clarify the situation completely through the direct exchange of arguments and, if necessary, to rephrase the patent application in the light of the outcome of the discussion. The duration of oral proceedings depended on the particular case; at any rate it was not unusual for such proceedings to continue into the afternoon, and the parties should be prepared for this.

In T 210/98 the respondent requested an apportionment of costs on the ground that the appellant **had withdrawn three auxiliary requests at the beginning of the oral proceedings** for which the preparation had been time-consuming. The board refused the request, stating that it was normal for parties to prepare themselves thoroughly for oral proceedings. A change of view was one of the situations with which a professional representative could be confronted during oral proceedings. As it was not exceptional for requests to be changed or withdrawn during oral proceedings as a result of the discussion held, no abuse of procedure could be seen in the withdrawal of requests at the beginning of the oral proceedings, which had apparently been a reaction to convincing written arguments.

In T 461/88 (OJ 1993, 295) the board decided that the appellants' insistence on **hearing witnesses** was clearly compatible with the principle of the responsible exercise of rights, as this may well have been the only means of proving the alleged public nature of the prior use. The board refused the request for apportionment of costs.

In T. 668/03 the appellant requested an apportionment of costs in view of the fact that **oral proceedings had to be held for a second time**. As a matter of fact, the former oral proceedings had to be adjourned because the identity of one of the opponents had been drawn into doubt by the appellant during the first oral proceedings. The board pointed out that it was the duty of the respondent to make it clear throughout the procedure who belonged to the group of common opponents. However, had the appellant raised this issue before the first oral proceedings, it could have been dealt with in writing and thus the costs for further oral proceedings could have been avoided. Therefore, the board could not detect any reasons of equity which could be used to order a different apportionment of costs (likewise T. 1404/10).

In T. 490/13 the board considered that the appellant (proprietor) had manifestly failed to act with due care during the opposition proceedings in that, even if the appellant considered the objections, which had been raised by the respondent and had been endorsed by the opposition division in its summons to oral proceedings, to be unfounded, it still **ought to have come up in time with a fall-back position** to counter them. Its failure to do so had led to its appeal, the need for oral proceedings before the board and the remittal to the opposition division for an examination of claims that the opposition division could already have assessed the first time round. Responsibility for the remittal in this case lay with the appellant, so the board decided to apportion costs differently (Art. 104(1) EPC) and ordered the appellant to pay those which the respondent had incurred in relation to the oral proceedings at the appeal stage.

In T. 2313/15 the respondent (opponent) requested an award of costs in the event that the case was remitted to the department of first instance. The board decided to remit the case but not to order a different apportionment of costs pursuant to Art. 104(1) EPC. The board noted that the patent proprietor in the proceedings before the opposition division had dealt with all the objections raised by the opponent in the reply to the notice of opposition. That it did so only by argument, without submitting auxiliary requests and without requesting oral proceedings, was a legitimate defence against an opposition, though it ran the calculated risk of an immediate adverse decision. Thus, the **patent proprietor had no particular obligation to request oral proceedings** before the opposition division. Nor did the board consider it equitable to impute to the patent proprietor the fact that the opposition division had chosen to decide the case on the basis of only one of the various issues raised and without summoning to oral proceedings (and was within its rights to do so). Finally, the fact that upon appeal the appellant argued only against novelty over D2 as the sole ground for revocation was not in any way reprehensible as it was all the appellant was required to do.

In T. 2061/19 the board considered that parties were by no means procedurally obliged to respond, let alone within a time limit, to a communication pursuant to Art. 15(1) RPBA 2020, even where the board's preliminary opinion was prejudicial to their interests. The absence of a reaction to such a negative preliminary, non-binding opinion of the board (Art. 17(2) RPBA 2020) could not constitute per se malicious or irresponsible behaviour that automatically amounted to an abuse of procedure within the meaning of Art. 16(1)(e) RPBA 2020.

2.3. Filing of opposition or appeal

Exceptions to the principle that each party must bear its own costs may also be made in cases of abusive conduct in which it is equitable to make an award of costs against one of the parties. An apportionment of costs is often requested on the grounds that the notice of opposition or appeal has been incorrectly filed. The fact that an appeal proves **clearly inadmissible** does not justify an award of costs if the appellant evidently has the subjective impression that he is adversely affected. A party which is of the opinion that the first-instance department has not acceded to its request may consider that it is adversely affected by the decision and may consequently decide to file an appeal. This is no more than its **legitimate right to make use of the appeal procedure** provided for in the EPC and to have the decision reviewed. Occasionally having to seek defence against unfounded or even inadmissible appeals is just one of the general risks of life and thus, in the absence of any further circumstances, does not justify a different apportionment of costs. The EPC makes no distinction between successful and unsuccessful appeals for the purposes of cost apportionment; so it cannot be argued that apportionment is justified if an appeal appears to be clearly inadmissible (T. 614/89, T. 772/95, T. 2177/12, T. 964/14).

In T. 170/83 the opponents had used an incorrect form for payment of the opposition fee, thereby giving rise to a decision by formalities to reject the opposition; the opponents thereupon filed an appeal against this decision. The patent proprietors (respondents) requested that the appeal costs be awarded against the appellants, since it was their error which had rendered the proceedings necessary. The board rejected the request, taking the view that the appeal proceedings were not improper. An abuse justifying the apportionment of costs could only be rooted in the party's conduct **during the proceedings**.

In a number of cases the boards took the admissibility or allowability of an opposition or an appeal to be an indication that no abuse had taken place (e.g. T. 7/88 and T. 525/88). Similarly, in T. 506/89, the board found that the opponent's filing of an appeal did not constitute an abuse of procedure and therefore rejected the request for a different apportionment of costs, since it had decided, in the oral proceedings, to maintain the patent as amended. Nor was there an abuse of procedure where the appeal was filed without new arguments (T. 605/92) or where the appellant's chances of success were considered to be low (T. 318/91). According to T. 717/95 no abuse has taken place if a party to the proceedings misinterpreted the content of a citation when comparing it with the subject-matter claimed in the disputed patent.

In J 22/12 it was disputed whether an appeal against a communication issued on behalf of the examining division could be admissible. The board found that this was not the case. It considered that the filing of an opposition and of a subsequent appeal in the matter could not be considered as an abuse of procedure as they were actions which used the provisions of the EPC for the ends envisaged by those provisions. Thus the board found it appropriate that each party should bear its own costs.